

Case Study-8
K.S. Puttaswamy v. Union of India
(2017)

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Introduction

The K.S. Puttaswamy v. Union of India (2017) case is one of the most important constitutional judgments in India. The case mainly dealt with the Right to Privacy and whether it is a fundamental right guaranteed by the Constitution of India. The case became important in the context of the Aadhaar scheme, which involved the collection of personal and biometric information of citizens. This raised concerns about the protection and misuse of personal data.

The Supreme Court, through a nine-judge Constitution Bench, unanimously declared that the Right to Privacy is a fundamental right under the Constitution. The Court explained that privacy is closely connected with life, personal liberty, dignity and individual freedom. The judgment also recognized the importance of protecting personal information in the growing digital age.

The Puttaswamy case became a landmark judgment because it strengthened the constitutional protection of individual privacy and provided an important foundation for dealing with issues related to personal data, digital privacy, government surveillance and individual autonomy.

Background of the Case

Justice K.S. Puttaswamy, a retired judge of the Karnataka High Court, challenged certain aspects of the Aadhaar scheme before the Supreme Court of India. Aadhaar was introduced as a system for establishing the identity of individuals by collecting personal information, including demographic details and biometric information such as fingerprints and other identification data. The petitioner raised concerns about the collection, storage and use of such sensitive information and argued that it could affect the privacy, liberty and dignity of citizens.

The main concern was whether the government could collect and use such a large amount of personal information without adequately protecting an individual's right to privacy. With the increasing use of technology and digital identification systems, the protection of personal information had become an important constitutional issue. The case therefore raised serious questions about the balance between the government's need for identification and the individual's right to privacy.

However, the case went beyond the Aadhaar scheme and raised a much wider constitutional question. The Supreme Court had to determine whether the Right to Privacy is a fundamental right guaranteed under the Constitution of India. Some earlier Supreme Court judgments had taken different views regarding the constitutional protection of privacy. This created uncertainty about whether privacy could be treated as a fundamental right.

Because of these conflicting decisions, the matter was referred to a nine-judge Constitution Bench of the Supreme Court. The larger Bench was asked to settle the constitutional position once and for all. The decision in this case was therefore expected to have an impact not only on Aadhaar but also on several areas involving personal liberty, individual autonomy, dignity, personal information and digital privacy.

The case ultimately became a landmark constitutional matter because it provided the Supreme Court with an opportunity to clarify the relationship between privacy and fundamental rights and to determine the extent to which the Constitution protects an individual's private life from unnecessary interference.

Facts of the Case

The Government of India introduced the Aadhaar scheme with the objective of providing every individual with a unique identification number. The main purpose of Aadhaar was to establish a reliable identity for citizens and residents and to improve the effective

delivery of government welfare schemes and public services. It was also intended to reduce duplication, prevent identity fraud and ensure that government benefits reached the intended beneficiaries.

For obtaining an Aadhaar number, individuals were required to provide certain personal, demographic and biometric information. This included details used for establishing identity, along with biometric information such as fingerprints and other identification data. The collection and storage of such information raised concerns regarding the privacy and security of personal data. Questions were also raised about how the information would be stored, used and protected from unauthorized access or misuse.

Justice K.S. Puttaswamy, a retired judge of the Karnataka High Court, challenged the Aadhaar system and expressed concerns about the possible impact of the scheme on an individual's fundamental rights. He argued that every person has a private sphere in which they should be able to live freely without unnecessary interference from the government or other individuals. According to the petitioner, personal information is closely connected with an individual's dignity, liberty and freedom.

The case became even more important because of the rapid development of modern technology. Technology makes it possible to collect, store, analyse and share huge amounts of personal information. This creates new risks relating to data security, surveillance and misuse of personal information. Therefore, the Court had to consider privacy in a broader sense rather than limiting it only to the protection of a person's physical space.

The Court was required to examine whether privacy also includes protection of personal choices, family life, communication, bodily integrity, personal information and individual autonomy. Thus, the facts of the case raised a fundamental question about how the Constitution should protect an individual's privacy in an increasingly digital and technology-driven society.

Legal Issue

The major legal issue before the Supreme Court of India was whether the Right to Privacy is a fundamental right guaranteed under the Constitution of India. The Constitution does not expressly use the words “Right to Privacy,” and therefore, the Court had to determine whether privacy could be derived from the existing fundamental rights, particularly the Right to Life and Personal Liberty under Article 21.

The Court also had to examine whether privacy is an essential part of individual liberty, dignity and personal autonomy. The issue became particularly important because the Aadhaar scheme involved the collection and storage of personal and biometric information of individuals. Therefore, the Court had to consider whether the State's collection and use of such information could interfere with a person's constitutionally protected privacy.

Another important legal issue was the interpretation of earlier Supreme Court judgments, especially *M.P. Sharma v. Satish Chandra* and *Kharak Singh v. State of Uttar Pradesh*. These cases had created uncertainty regarding whether privacy was protected as a fundamental right under the Constitution. The Supreme Court therefore had to reconsider the reasoning in these earlier decisions and determine whether they were consistent with the constitutional principles of liberty, dignity and individual freedom.

Thus, the Court was required to settle the constitutional position once and for all and determine whether every individual has a fundamental right to privacy and, if so, what constitutional protections and limitations apply to that right.

Arguments of the Petitioner

The petitioner argued that the Right to Privacy is an essential part of the right to live with dignity and personal liberty. According to the petitioner, the protection given under Article 21 of the

Constitution should not be limited to merely protecting a person's physical existence. It should also include the right to live a life with dignity, freedom, autonomy and personal choice.

The petitioner argued that every individual has a private sphere in which they should be able to make personal decisions without unnecessary interference from the State or other individuals. A person's privacy includes important aspects of life such as personal choices, family relationships, communication, bodily integrity and personal information. Therefore, unnecessary interference in these areas could affect an individual's freedom and dignity.

The petitioner also raised concerns about the collection and use of personal and biometric information under the Aadhaar scheme. Since modern technology allows large amounts of personal data to be collected, stored and processed, the petitioner argued that individuals should have some control over how their personal information is collected and used.

The petitioner therefore requested the Supreme Court to recognize the Right to Privacy as a fundamental right protected by the Constitution. It was argued that recognizing privacy as a fundamental right was necessary to protect individual liberty, dignity and autonomy in a modern and technology-driven society.

Arguments of the Government

The Union Government questioned whether the Right to Privacy could be recognized as an independent fundamental right under the Constitution of India. The Government referred to certain earlier decisions of the Supreme Court which had expressed doubts about whether privacy was constitutionally guaranteed as a fundamental right.

The Government argued that the Constitution does not specifically mention the Right to Privacy as a separate fundamental right. Therefore, according to the Government, the Court needed to carefully

examine the earlier constitutional interpretations before declaring privacy to be a fundamental right.

The Government also argued that the State may need to collect certain personal information for legitimate and necessary purposes. Such purposes could include the effective delivery of government welfare schemes, preventing duplication and identity fraud, verifying beneficiaries and improving the efficiency of public administration.

However, the Government's position was that such collection should be authorized by law and carried out for legitimate governmental purposes. The State's requirement for certain information, according to the Government, should be balanced with the interests of individuals.

Thus, the arguments of both sides raised an important constitutional balance between individual privacy and legitimate State interests. The Supreme Court was required to determine whether privacy is a fundamental right and, if so, how the right should be protected while allowing the government to perform its legitimate functions.

Judgment of the Supreme Court

On 24 August 2017, a nine-judge Constitution Bench of the Supreme Court of India unanimously held that the Right to Privacy is a fundamental right protected by the Constitution. The Court stated that privacy is an important part of the Right to Life and Personal Liberty under Article 21 and is also connected with other fundamental rights under Part III of the Constitution.

The Court explained that the right to life is not limited to mere physical existence. It also includes the right to live with dignity, freedom, personal choice and autonomy. Therefore, every individual has a protected private space where personal decisions and information should be respected.

The judgment rejected the idea that privacy is only a common-law right or privilege. Instead, it recognized privacy as a constitutional right that

protects individuals from unjustified or arbitrary interference by the State.

The Court also clarified that the Right to Privacy is not absolute. Any restriction on privacy must have a proper legal basis, a legitimate purpose and must be reasonable and proportionate. This landmark judgment strengthened the protection of individual liberty, dignity, personal information and privacy in India.

Conclusion

The K.S. Puttaswamy v. Union of India (2017) judgment is a landmark decision that fundamentally changed the understanding of privacy in India. The Supreme Court unanimously declared that the Right to Privacy is a fundamental right protected by the Constitution. The judgment recognized privacy as an essential element of life, liberty, dignity and personal autonomy. It also emphasized the importance of protecting personal information in the digital age. The decision continues to influence constitutional cases involving technology, data, Aadhaar, surveillance and individual rights. Overall, the Puttaswamy judgment strengthened the position of individuals in a constitutional democracy by affirming that every person has a protected sphere of personal life and freedom that deserves respect and protection.